

3. STEPHENS v. LAUB LAW PLCC, ET AL., 25CV1050**Plaintiff's Motion to Vacate Order Setting Aside Default**

On May 15, 2026, the court granted defendant Law Firm of Laub & Laub's ("defendant") motion to set aside default. On June 9, 2026, plaintiff Jon C. Stephens ("plaintiff") filed the instant motion to vacate said order.

On August 11, 2026, defendant filed an untimely opposition, as well as a motion to continue the instant hearing, claiming plaintiff's motion did not include a proof of service.

On August 12, 2026, plaintiff filed an opposition to defendant's motion to continue.

The court finds that defendant's argument in support of its motion to continue is unpersuasive. Proof of service filed June 15, 2026, shows plaintiff personally served the motion upon defendant on June 11, 2026.

Turning to plaintiff's motion to vacate, plaintiff claims defendant lacked capacity to file its March 4, 2026, motion to set aside default because its legal status as a professional corporation has been suspended or forfeited since 2015.¹ Notably, plaintiff's third amended complaint ("TAC") names "Law Firm of Laub & Laub, a Professional Corporation (Entity No. 2642007), Suspended California Foreign Corporation." This shows plaintiff was aware of the fact that the professional corporation was allegedly suspended at the time plaintiff filed his TAC.

Although not expressly cited by plaintiff, Code of Civil Procedure section 473, subdivision (d) authorizes the court, upon motion, to "set aside any void judgment or order." (Code Civ. Proc., § 473, subd. (d).)

In its March 4, 2026, motion to set aside, defendant identified itself as "Law Firm of Laub & Laub." Defendant's proposed answer, attached to the March 4, 2026, motion to set aside, does not clearly state that defendant was erroneously sued under a

¹ Specifically, the California Secretary of State's website indicates that the Law Firm of Laub & Laub, PC, is a forfeited entity. (Evid. Code, § 452, subd. (h).)

misnomer.² However, that is the implication where defendant identified itself as “Law Firm of Laub & Laub.” Defendant has not identified itself to the court as a corporation and the name it has used to appear in this case does not include the term, “corporation.” A business is not required to operate under a corporate legal status. (See, Civ. Code, § 1798.140, subd. (d).)

Based on the above, plaintiff has not demonstrated that the court’s May 15, 2026, order is void on the basis of defendant having a suspended or forfeited corporate legal status.

TENTATIVE RULING # 3: DEFENDANT’S MOTION TO CONTINUE THE INSTANT HEARING IS DENIED. PLAINTIFF’S MOTION TO VACATE THE COURT’S MAY 15, 2026, ORDER SETTING ASIDE DEFAULT IS DENIED. THE COURT, ON ITS OWN MOTION, ORDERS DEFENDANT LAW FIRM OF LAUB & LAUB TO FILE AND SERVE A NOTICE OF MISNOMER NO LATER THAN SEPTEMBER 4, 2026. ALTERNATIVELY, THE COURT ORDERS DEFENDANT LAW FIRM OF LAUB & LAUB TO FILE AND SERVE A DECLARATION IDENTIFYING ITS CORRECT ENTITY NAME AND CORPORATE LEGAL STATUS NO LATER THAN SEPTEMBER 4, 2026.

NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID

² In fact, the body of the answer does not reference defendant. The body of the answer only references co-defendant Joe Laub. The caption of the proposed answer, as well as the signature line of the proposed answer, however, both reference defendant “Law Firm of Laub & Laub.”

**NOTICE MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID
NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.**